
Case	Title / Nature of Case
9:00 AM Line 1 23-CIV-01610	UN HUI FAITH NAM, MD, ET AL VS. CITY OF REDWOOD CITY, ET AL

UN HUI FAITH NAM
CITY OF REDWOOD CITY

MICHAEL C. GUASCO
KEVIN E GILBERT

Defendants' Motion for Terminating and Issue Sanctions

TENTATIVE RULING:

Defendant Redwood City's motion for terminating sanctions regarding the First Amended Complaint filed by Plaintiff Un Hui Faith Nam, M.D and Brian Munneke, PhD., on December 22, 2023, is GRANTED. The request for issue sanctions is DENIED AS MOOT.

A. Background

On or about August 29, 2020, Dr. Nam was contacted at her home by five Redwood City Police Officers on the basis of a report that she had violently repossessed a puppy she had previously fostered and adopted to alleged victim Cynthia Woodman. (Comp. ¶ 12.) The entire arrest was captured on plaintiff's home security cameras. (Comp. ¶ 13.)

On or about October 17, 2022, Plaintiff was sentenced for violating Penal Code Section 148 for willfully delaying a peace officer. On March 3, 2023, the Court granted Dr. Nam's Motion for Early Termination of Probation under Penal Code Section 1203.3. Dr. Nam had a hearing for Petition to Seal Arrest Record scheduled for April 5, 2023. (Comp. ¶ 11.)

On February 23, 2024, Defendant served their Form Interrogatories (Set One), Special Interrogatories (Set One) and Request for Production of Documents (Set One) ("Discovery Requests") on Plaintiff. Because the City did not receive responses to the outstanding discovery by the deadline or for several months thereafter, Defendant scheduled an Informal Discovery Conference ("IDC") for August 28, 2024. The IDC was held, and the Court issued a Minute Order for Plaintiff to serve amended responses and produce documents by September 11, 2024.

On September 13, 2024, Plaintiff served amended responses to Defendant's Discovery Requests. Most of the responses were still woefully deficient. On October 28, 2024, Defendant filed Motions to Compel Further Responses to its Requests and Requests for Sanctions. (Declaration of K. Houle-Sandoval iso motion for terminating sanctions, ¶ 3, Exhs. B-D.) On April 11, 2025, the Court granted defendant's motions, finding intentional delay and non-compliance and awarded sanctions totaling \$6,440. (*Id.* Ex. E.)

To date, more than a year after the above Court Order, Plaintiff has not served further responses to Defendant's Discovery Requests nor produced documents responsive to the RFP in violation of the Court's order. (Houle-Sandoval Decl., ¶ 6.) Additionally, Plaintiff has not paid the sanctions in violation of the Court's Order. (Id. at ¶ 7.)

Defendant filed the instant motion requesting both terminating and issue sanctions due to her failure to respond to the Court's order on the motions to compel and the sanctions ordered, pursuant to Code of Civil Procedure sections 2023.010, 2023.030, 2031.310, subd. (i), 2031.320, subd. (c) and 2030.300, subd. (e). Plaintiff filed a late opposition, contending that plaintiffs' lack of responsiveness was due to former counsel's lack of competence, the breakdown of the attorney-client relationship and an unfulfilled promise to produce responsive documents. Unexplained was Dr. Nam's failure to comply, as she is also a licensed attorney.

B. Legal Standard

Misuse of the discovery process is a sanctionable offense under the Civil Discovery Act (Code Civ. Proc. §§ 2023.010, 2023.030 [defining types of sanctions available]) and in the instant motion plaintiff requests the Court level nearly every manner of sanction available. Code of Civil Procedure, section 2023.030 provides that, to the extent authorized by any particular discovery method, the court may impose monetary, issue, evidence or terminating sanctions. Code of Civil Procedure, sections 2030.300, subdivision (e) and 2031.310, subdivision (i) state that if a party fails to obey and order compelling further responses, the court may make those orders that are just, including the imposition of an issue, evidence or terminating sanction. "Sanctions are not to be used 'to provide a weapon for punishment, forfeiture and the avoidance of a trial on the merits' [citation], and a more severe sanction is disfavored if a lesser sanction is available [citation]." (*City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal.5th 46, 75.) "Among the myriad purposes of the civil discovery statutes is to safeguard against surprise and gamesmanship, and to prevent delay." (*Williams v. Travelers Ins. Co.* (1975) 49 Cal.App.3d 805, 810.)

Whether to grant a sanction is entirely within the discretion of the court. (Weil & Brown § 8:1207; *Pember v. Superior Court* (1967) 66 Cal.2d 601, 604.) The court's choice of sanctions is reviewable only for abuse of discretion. (*Sauer v. Superior Court* (1987) 195 Cal.App.3d 213; Code Civ. Proc., §§ 2023.010; 2023.030 [describing "misuses of the discovery process", which include "[f]ailing to respond or to submit to an authorized method of discovery" and "[d]isobeying a court order to provide discovery"], section 2023.010, subdivisions (d), (g).) The court's decision on a request for sanctions should reflect the purpose of discovery sanctions which is to enable the party seeking the discovery to obtain the information sought, not to punish a disobedient party. (*Ghanooni v. Super Shuttle of Los Angeles* (1993) 20 Cal.App.4th 256, 262.)

When exercising its discretion to determine which form of sanction is most appropriate for a discovery violation, a trial court should consider various factors, including "the importance of the materials that were not produced—from the perspective of the offended party's ability to litigate the case—and what prejudice, if any, the offended party suffered" [Citations.]

(Victor Valley Union High School Dist. v. Superior Court (2023) 91 Cal.App.5th 1121, 1158.)

C. Discussion

Here, the Court’s review of the separate statement in support of the motion demonstrates that the answers are indeed wholly inadequate, long overdue, and utterly not code-compliant. Plaintiff was ordered on April 14, 2025 to serve verified, code-compliant responses, without objection, to Requests for Production Nos. 2-7, 11-14, 16-17, and 21-30 within ten days; to produce responsive documents within twenty days; and to pay sanctions in the amount of \$2,240. (Declaration of Kelly Houle-Sandoval, ¶ 4, Ex. E.) Plaintiff has not served further responses, produced documents, or paid the sanctions. (Id. at ¶¶ 6, 7.) Instead, the opposition brief to this motion promises (once again) full compliance with court orders and with discovery with “full, complete, and objective-free responses to outstanding requests and will produce responsive documents.” (Opp. p. 2.) That response supplies no facts, it is a bare promise that at this point is not credible. Furthermore, counsel states his late substitution and the full breakdown of attorney client relationship with plaintiff’s former counsel as the reason for lack of compliance, yet as of this date no discovery has been provided. (Houle-Sandoval Decl. ¶¶ 6 & 7.)

Plaintiff utterly ignores the lengthy history and extraordinarily long passage of time which impacts this decision. Notably, for discovery served in early 2024, the IDC was held on August 28, 2024, almost two years past. There was no compliance. The resulting motions to compel were than granted by Order of April 11, 2025, over one year ago. Still no compliance. This has clearly prejudiced the Defendants.

The Court has already issued monetary and evidentiary sanctions, but they had no impact in having Plaintiff comply with the discovery requests. Terminating sanctions are typically a last resort to be used sparingly, but they are justified in the first measure in “extreme cases” where a litigant violates a court order and “persists in the outright refusal to comply with discovery obligations” (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 793.) This is such an extreme case. As stated above, a review of the responses and the record demonstrates plaintiff’s willful, ongoing and persistent refusal to comply with the Court’s orders. As such, termination is appropriate in the interest of justice.

Accordingly, the Court GRANTS defendant’s request for termination of the operative complaint. Because the matter is terminated the request for an issue sanction is DENIED AS MOOT. In addition to an Order after hearing, Defendant is to also file a Judgment for dismissal of Plaintiff’s complaint with prejudice.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 2

24-CIV-05539 ERAY ERBAY VS. HUSEYIN TOSUN, ET AL

ERAY ERBAY
HUSEYN TOSUN

BRIAN M CARTER
SUSAN E. BISHOP

Cross-Defendant's Motion for a Continuance of Trial and Related Dates

TENTATIVE RULING:

Cross-Defendant Muslum Caferoglu moves for a trial continuance in this matter. Cross-Complainants Huseyn Tosun and Sema Tosun oppose the motion.

The underlying employment action in this case, filed by Plaintiff Eray Erbay, has been resolved. The Tosuns' Cross-Complaint is now the only operative pleading seeking relief in this action. The cross-complaint asserts contractual indemnification, equitable indemnification, and contribution against Caferoglu.

Caferoglu's motion to continue trial is GRANTED. Parties may appear to confirm availability for the dates stated below.

Caferoglu's request for judicial notice of the Cross-Complaint (Ex. 1), his Answer (Ex. 2), Cross-Complainants' Motion to Quash (Ex. 3), and Cross-Complainants' Motion for Summary Adjudication (Ex. 4) is GRANTED.

Cross-Complainants' request for judicial notice of this Court's pre-trial order No. 1 (Ex. A), This Court Minute Order re: April 23, 2026 IDC (Ex. B), and Cross-Complainants' Motion for Summary Adjudication (Ex. C.) is GRANTED.

Legal Standard

"Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance." (Cal. Rules of Court, rule 3.1332, subd. (c).) Circumstances that may indicate good cause include:

- (1) The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances;
 - (2) The unavailability of a party because of death, illness, or other excusable circumstances;
 - (3) The unavailability of trial counsel because of death, illness, or other excusable
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